



Acquisition Directorate

**DEPARTMENT OF DEFENSE
WASHINGTON HEADQUARTERS SERVICES**
1155 DEFENSE PENTAGON
WASHINGTON, DC 20301-1155



Control No. WHS-2025-1624-JA

March 28, 2025

**JUSTIFICATION FOR
OTHER THAN FULL AND OPEN COMPETITION (JOFOC)
UNDER FEDERAL ACQUISITION REGULATION FAR SUBPART 6.3
HQ0034-24-C-0046 Sancorp Consulting, LLC**

1. **AGENCY AND CONTRACTING ACTIVITY:** The Department of Defense (DoD), Washington Headquarters Services, Acquisition Directorate (WHS/AD), Enterprise Office of the Secretary of Defense Division (EOSD), Technical Analysis Branch (TAB) on behalf of the Office of the Under Secretary of Defense for Intelligence and Security (OUSD(I&S)) Special Activities and Special Programs (SASP).
2. **DESCRIPTION OF ACTION:** OUSD(I&S) SASP has a continuing need for Specialized and Sensitive Administrative, Policy, Operations and Analytic Support Services to the Influence and Perception Management Office (IPMO). The current contract expires March 27, 2025, and the Government intends to extend the current contract period of performance (POP) for continuity of services. The Government recently awarded a competitive long-term; Blanket Purchase Agreement (BPA) on February 14, 2025, and the concurrent Call Order for EXDIR HQ0034-24-F-0704 and Sensitive Activities & Special Programs (SASP) HQ0034-24-F-0705, were awarded on February 20, 2025. However, on March 6, 2025, a protest was filed against the two Call Order awards resulting in a 100-day stop work order. Therefore, an extension will be required to continue services while the Government works to resolve the protest and ultimately resolicits the Call Orders amongst the Blanket Purchase Agreement (BPA) holders, if necessary. WHS/AD intends to award the follow-on contract by July 2025. This extension will utilize Firm-Fixed-Price (FFP) Contract Line-Item Numbers (CLINs), with a total estimated value of \$766,896.00 using fiscal year (FY) 2025 Operation and Maintenance (O&M) Funds. The period of performance for the bridge contract will be extended from March 28, 2025, to July 27, 2025.
3. **DESCRIPTION OF SUPPLIES/SERVICES:** SASP has a requirement to obtain Specialized and Sensitive Administrative, Budget, Policy, Operations and Analytic Support in the areas of budgetary analysis, technical collection, Human Intelligence and intelligence support to cyberspace and electronic warfare operations, analysis, special programs, sensitive activities, and mission integration. This requires expertise in security, resource requirements, formulating strategies, strategic planning and concept development, program analysis and evaluation, policy, and development of solutions that assist with the decision-making process, and other areas related to the mission of OUSD(I&S). The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform services as defined in the contract Performance Work Statement (PWS), except for those items specified as government-furnished property and services.

Performance Period(s)	Performance Period Dates	Amount
(4) Month Bridge Extension	March 27, 2025 – July 26, 2025	\$1,003,061.20

Controlled by: WHS/AD
CUI Category(ies): SP-PROCURE
Limited Dissemination Control: FEDCON
POC: Syreeta A. Donald, syreeta.a.donald.civ@mail.mil

The Contractor's performance and deliverables shall provide wide ranging technical and administrative support and program support at the direction of the Executive Director.

4. **AUTHORITY CITED:** This action is authorized under provisions of 10 U.S.C. 3204(a)(1), FAR 6.302-1(a)(2)(iii)(B), "Only one responsible source and no other supplies or services will satisfy agency requirements." More specifically, "For DoD...services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in [u]nacceptable delays in fulfilling the agency's requirements."
5. **REASON FOR AUTHORITY CITED:** SASP requires continued, support from the incumbent to fulfill its requirement for professional, technical & administrative support. If not, the Government would experience unacceptable delays in providing the necessary support for SASP and subsequently within the I&S Enterprise. Only one source can provide the supplies or services required at the level SASP requires continued, support from the incumbent to fulfill its requirement for professional, technical & administrative support. This action is necessitated by a formal bid protest received in response to the intended award for technical, professional, administrative, management, policy, and operational support under a newly awarded Blanket Purchase Agreement (BPA) for OUSD(I&S). The BPA was awarded on February 14, 2025, and the protested EXDIR and SASP Call Orders were awarded on February 20, 2025, with a transition-in start date of March 13, 2025. This current contract is in a FAR 52.217-8 extension and expires on March 27, 2025. Due to the anticipated time required to resolve this protest through the formal process, a bridge contract with the incumbent vendor is critical to avoiding any disruption in essential support services.

Failure to extend these services and losing the support and expertise of the Sancorp contract team would result in incalculable delays that would derail or halt missions across SASP. These delays would impact the SASP's on-going efforts to develop directives, perform oversight functions, and execute processes that impact over \$18 Billion of DoD investment in strategic capability development. SASP resides within OUSD(I&S) and provides necessary support to develop broad thematic guidance focused on strategic capabilities and key adversaries; promulgate competitive strategies focused on specific defense issues. SASP works across the DoD, with the Intelligence Community (IC), and with Non-Defense Federal Departments and Agencies (NDFDA) to develop integrated directives to align Operations, Activities, and Investments (OAI) for an influential effort in support of the National Defense Strategy (NDS). SASP is responsible for oversight of all defense intelligence support and initiatives within the Department of Defense. In addition, to accomplish the work within the allotted schedule, an extension must seamlessly follow the initial effort to maintain continuity of services. Therefore, an extension to HQ0034-24-C-0046 is needed to maintain continuity of services and is the most logical and cost-effective solution to the Government, as a break in support is unacceptable and would cause detrimental mission failure to OUSD(I&S) and across the DoD, IC and with OAI initiatives with NDFDA.

SASP contract personnel provide critical support to the daily operations of SASP and its subordinate directorates. The Sancorp contract team are embedded with OUSD(I&S) staff and have special and current knowledge about Defense Intelligence Enterprise initiatives happening across the DoD. An extension to Sancorp avoids unacceptable delays in fulfilling the administrative, budgetary, analytic, and operational objectives of SASP and adverse impact on OUSD(I&S) SASP initiatives. The expert functional and historical knowledge of the Sancorp personnel is key to SASP being able to continue to perform its mission while the Government works through this protest.

Furthermore, SASP is responsible for providing timely data, responses, or solutions in a prescribed method by a set deadline to the DoD and Congress. Positively affecting defense intelligence oversight in a consistent manner becomes a strain when SASP provides an untimely response to an inquiry. This, in turn, leads to delays in approving plans and concepts which ultimately impacts DoD Components' ability to execute their assigned missions. The current contract team has a depth and breadth of knowledge that cannot be easily

replaced or duplicated without a significant gap in services if an extension is not executed.

The substantial duplication of cost is estimated at \$449,715.72 in support services needed from another vendor to provide the support services to OUSD(I&S) and SASP. This duplication of cost is not expected to be recovered through competition. The Government would incur significant onboarding, training, and knowledge transfer duplication of costs to reach the current incumbent's level of expertise for only four months of work. The Government estimates the following duplication of cost breakdown:

Onboarding and Training: \$66,316.80 based on a week of onboarding costs which consists of in-doc with security, updating credentials on Common Access Card (CAC), Pentagon Access, and network accounts being processed.

Knowledge Transfer: \$132,633.60 based on estimated 80 hours required for current staff to document work and transfer knowledge.

Opportunity Cost of Delays: \$250,765.32, assuming a 30-day lapse in service to compete the award, based on financial risk due to delayed ability to address national regulatory issues arising from key U.S. regulatory bodies, executive branch agencies. The ability to provide research and advice to develop and advance strategy that addresses the evolving international regulatory environment.

Continued specialized support of contract personnel is necessary to continued SASP's ability to meet requirements across the DoD. The potential for losing this expert contract support for any protracted period while awaiting resolution of the protest and the re-solicitation and award of the SASP Call Order poses a serious and significant risk to SASP affecting its mission.

6. **EFFORTS TO OBTAIN COMPETITION**: Due to the urgent need to extend services to avoid a lapse in contractor support, the Government published a "Notice of Intent" (NOI) on SAM.GOV to notify industry of its intent to extend services on March 11, 2025, with a closing date of March 14, 2025. The NOI posted did not receive any responses
7. **FAIR AND REASONABLE COST DETERMINATION**: The Contracting Officer (CO) determines that the anticipated prices will be fair and reasonable by using the techniques identified at FAR 15.404-1 "Proposal Analysis Techniques", specifically FAR 15.404-1(b)(2)(ii) and FAR 15.404-1(b)(2)(v) to ensure award will be at fair and reasonable prices. In addition, the Government will compare proposed prices set forth by Sancorp to historical prices paid by the Government under the current contract, HQ0034-24-C-0046. The Government will also compare proposed prices with the Independent Government Cost Estimate (IGCE) prepared for the period of performance extension and request price reductions or discounts.
8. **MARKET RESEARCH**: Market Research has been limited to the NOI to sole source this action and was posted on SAM.gov as described in paragraph 6, above. WHS/AD will conduct an administrative modification to the existing contract to extend it to maintain continuity of support being provided to SASP. The contract extension is the most efficient and logical strategy and solution to the Government to avoid unacceptable delays in fulfilling the agency's requirement and a potential gap in performance of critical services to SASP.
9. **OTHER FACTS**: Due to the irreparable damage that may result to SASP's mission should services be interrupted; a sole source contract extension will be negotiated with Sancorp. Sancorp has been critically instrumental to the success and continuation of the DoD mission.
10. **INTERESTED SOURCES**: To date, no other sources have expressed an interest, feedback, or challenges in writing and no bids or proposals have been received to the Notice of Intent" required by FAR 5.201, that was published on SAM.GOV to notify industry of its intent to extend services.

11. **ACTIONS TO INCREASE COMPETITION**: This requirement was initially competed with fair opportunity to the vendors deemed capable and eligible under the establishment of the WHS-AD OUSDI Enterprise multiple award BPA via the General Services Administration (GSA) Multiple Award Schedule (MAS) 8(a) Pool. However, due to a protest filed against the BPA's SASP Call Order award made from the fair opportunity solicitation, and severe time constraints due to the protest being filed weeks before the end of the current bridge contract POP, the Government must restrict award consideration and implement an extension to Sancorp. Soliciting an open competition for a contract for these services will take at least 120 days based on the \$4 million contract value, which would cause a gap in services. SASP's mission cannot afford any interruption of services or resultant gap in services to compete an additional contract during the protest. There could be irreparable damage to SASP's mission should services be interrupted and/or delayed.
12. Is this acquisition for a non-competitive follow-on acquisition previously awarded on a non-competitive basis?
- ☒ Yes. A copy of the previous justification is attached. The actions to remove any barriers to competition cited on the previous justification ☒ were ☐ were not completed.
- ☐ No. The original acquisition was conducted on a competitive basis.
- ☐ Not Applicable. This is a new requirement.

CERTIFICATION

I, hereby, certify that the supporting data under my cognizance included in this justification are accurate and complete to the best of my knowledge and belief.

IFFT.ELIZABETH.CA
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Contracting Officer's Representative/Program Office

Date

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Contracting Officer

Date

APPROVAL

This justification is, approved.

KAO.DAVID.HOBERT
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David H. Kao, Competition Advocate

Date